

Surrey County Council Act, 1958

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CHAPTER xlii

An Act to confer further powers on the Surrey County Council and in certain cases on local authorities in the administrative county of Surrey in relation to lands and highways and the local government improvement health and finances of the county and for other purposes.

[1st August 1958.]

WHEREAS it is expedient that further and better provision should be made with reference to lands and highways and for the local government improvement health and finances of the administrative county of Surrey and that the powers of the county council of that administrative county (hereinafter called "the Council") and in certain cases of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

And whereas the Council and the mayor aldermen and burgesses of the borough of Wimbledon have entered into deeds of covenant under which the said mayor aldermen and burgesses in consideration of a contribution by the Council towards the cost of acquisition of certain lands adjoining Wimbledon Common covenanted to preserve the said lands from building development and to hold and maintain the same in perpetuity as an open space:

And whereas the Council and the urban district council of Merton and Morden have entered into a deed of covenant under which the said Council likewise covenanted as respects land forming part of Morden Park:

And whereas it is expedient that the said deeds of covenant be confirmed:

And whereas the Council were authorised by the Surrey County Council (Hogsmill River Improvement) Order 1942

confirmed by the Land Drainage (Surrey County Council (Hogsmill River Improvement)) Provisional Order Confirmation Act 1942 to carry out the works thereby authorised and it is provided by the said order as amended by the Surrey County Council (Hogsmill River Improvement) Order 1950 confirmed by the Land Drainage (Surrey County Council (Hogsmill River Improvement) (Amendment)) Provisional Order Confirmation Act 1950 that if the works authorised by the said order of 1942 are not completed on or before the thirty-first day of December nineteen hundred and sixty then as from that date the powers of the Council for the execution of such works shall cease except so far as the same are respectively then completed:

And whereas it is expedient further to extend the period limited for the completion of the works authorised by the said order of 1942:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Surrey County Council Act 1958.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Highways and streets.

Part IV.—Buildings structures etc.

Part V.—Parks open spaces commons etc.

Part VI.—Finance.

Part VII.—Superannuation pensions etc.

Part VIII.—Miscellaneous.

Part IX.—General.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

PART I

—cont.

Incorporation
of Lands
Clauses Acts.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1925 ” means the Surrey County Council Act 1925;

“ Act of 1931 ” means the Surrey County Council Act 1931;

“ Act of 1933 ” means the Local Government Act 1933;

“ Act of 1936 ” means the Public Health Act 1936;

“ Act of 1947 ” means the Town and Country Planning Act 1947;

“ authorised security ” means any mortgage stock bond or other security which the Council or a local authority are for the time being authorised to grant create or issue or upon or by means of which the Council or a local authority are for the time being authorised to raise money;

“ claimed road ” means a county road in respect of which a local authority have claimed or may hereafter claim under section 32 of the Local Government Act 1929 to exercise and are exercising the functions of maintenance and repair;

“ commission ” means the British Transport Commission;

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;

“ Council ” means the county council of the county;

“ county ” means the administrative county of Surrey;

“ county fund ” means the county fund of the Council;

“ county road ” has the same meaning as in Part III of the Local Government Act 1929;

“ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;

PART I
—cont.

“district” means a borough or an urban or a rural district in the county;

“enactment” includes this Act and any general or local Act order byelaw or regulation for the time being in force within the county or within a district;

“highway authority” means—

(a) in the case of a trunk road the Minister of Transport and Civil Aviation or with his consent the authority who are for the time being acting as his agent under the Trunk Roads Acts 1936 and 1946 with respect to that trunk road;

(b) in the case of a county road except a claimed road and in the case of any other road for the time being maintained by the Council the Council; and

(c) in the case of any other highway (not being a highway repairable by the commission) the local authority for the district in which the highway is situate;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;

“local Act of 1936” means the Surrey County Council Act 1936;

“local authority” means the council of a district;

“magistrates’ court” has the same meaning as in the Magistrates’ Courts Act 1952;

“Minister” means the Minister of Housing and Local Government;

“open space” has the same meaning as in the Open Spaces Act 1906;

“scheduled deeds” means deeds made—

the twenty-fifth day of May nineteen hundred and thirty-nine between the mayor aldermen and burgesses of the borough of Wimbledon and the Council;

the twenty-fifth day of March nineteen hundred and fifty-seven between the above-named parties (being supplemental to the above-mentioned deed);

the first day of November nineteen hundred and fifty-four between the mayor aldermen and burgesses of the borough of Wimbledon and the Council;

the twentieth day of November nineteen hundred and forty-five between the urban district council of Merton and Morden and the Council;

which deeds are set out in the First Schedule to this Act;

“statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by the council of any county or county district or by any authority being a local authority as defined by section 34 of the Local Loans Act 1875 but does not include any annuities rentcharges or securities transferable by delivery;

“statutory undertakers” means any company body or person authorised by any Act of Parliament or order having the force of an Act to supply electricity gas or water;

“street” and “road” have the meanings assigned to the word “street” in the Act of 1936;

“verge” includes land situate between two carriageways and any part of a street which is not a carriageway footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

5.—(1) Every undertaking given by or to the Council to Undertakings or by the owner of any legal estate in land and every agreement and agreements made between the Council and any such owner being an under- binding successive taking or agreement— owners.

(a) given or made under seal on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

PART II
—cont.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Council a copy thereof.

Covenants or
restrictions
affecting
certain land.

6. Where land owned by the Council (being land acquired by the Council to provide a site for a voluntary school) is conveyed by the Council to the trustees of a voluntary school in pursuance of the provisions of the Education Act 1946 any covenants or restrictions affecting the use of such land as aforesaid shall be enforceable against the trustees or governors or managers of the voluntary school only to the extent that they were enforceable against the Council prior to the conveyance referred to in this section.

Reservation
of easements
etc. by
Council.

7. On selling any land the Council—

- (a) may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly;
- (b) may make the sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the deposit or discharge of manure sewage or other impure matter or otherwise as they think fit.

Compulsory
acquisition of
easements.

8.—(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council any easement in or over any land or other right in or over or in relation to any land which may be acquired or held by the Council for a purpose for which they are authorised to acquire lands compulsorily which in the opinion of the confirming authority is essential to the full enjoyment or use of any other land owned by the Council for the purposes of any of their undertakings powers or duties or in respect of which the Council have made a compulsory purchase order.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material

detriment to the land in or over or in relation to which it is proposed to be created or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house.

PART II
—cont.

(3) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946 and as if the expression "compulsory purchase of land" in the Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house building or manufactory or of a park or garden belonging to a house within paragraph 4 of the Second Schedule to the Act of 1946.

(5) In this section—

the expression "the Act of 1946" means the Acquisition of Land (Authorisation Procedure) Act 1946 ;

the expression "confirming authority" means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

9.—(1) All Lammas rights (if any) over the land to which this section applies are hereby extinguished.

Extinction
of Lammas
rights.

(2) The land to which this section applies is a plot of land situate within the royal borough of Kingston-upon-Thames containing 10·224 acres or thereabouts having a frontage to the north-eastern side of Richmond Road and bounded on or towards the north by gardens in the rear of properties in Fernhill Gardens on or towards the east by an access way to the rear of properties in Wolsey Drive and on or towards the south by Kingston Tiffin County School for Girls.

(3) Any person (other than Buckminster Estates) who immediately prior to the passing of this Act was entitled to exercise Lammas rights over the said land or any part thereof shall be entitled to claim compensation from the Council for the loss of such rights if he makes such a claim within one year after the passing of this Act and the amount of such compensation shall in default of agreement be determined under the Lands Clauses Acts.

10. The scheduled deeds are hereby confirmed.

Confirmation
of scheduled
deeds.

PART III

HIGHWAYS AND STREETS

Interpretation
of Part III.

11.—(1) In this Part of this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“classified road” has the same meaning as in the Local Government Act 1929;

“private street” means a street within the meaning of the Private Street Works Act 1892 or land which is deemed to be a private street by virtue of subsection (2) of section 48 of the Act of 1947;

“private street works” means works executed under the Private Street Works Act 1892 or in relation to land which is deemed to be a private street as aforesaid works executed under that Act as applied by subsection (3) of the said section 48 or by this Act;

“structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof (whichever is the earlier) began.

Removal of
trees etc. from
highways.

12. If any tree fence wall or structure or any part thereof shall fall on or across any county road so that obstruction is caused or is likely to be caused to persons or vehicles using such road the Council may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree fence wall or structure or any part thereof was situate from the occupier thereof.

Revocation of
improvement
line.

13.—(1) Where in the opinion of the highway authority the retention of any improvement line or part thereof which has been prescribed in pursuance of section 33 or of section 34 of the Public Health Act 1925 is no longer necessary or desirable and should be revoked the highway authority may by resolution revoke such line or any part thereof and such revocation shall be indicated on the improvement plan on which the improvement line is marked.

(2) Notice of such revocation shall be given to every occupier and owner of land interested in like manner as notice is required to be given under subsection (3) of the said section 33.

(3) An improvement line or part thereof shall not be revoked under this section in relation to any road which at the time when the revocation is proposed is a classified road until notification of the proposed revocation has been sent to the Minister of Transport and Civil Aviation and his observations with respect thereto have been considered.

PART III
—cont.

14.—(1) Where in the opinion of the highway authority the retention of any building line or part thereof which has been prescribed in pursuance of section 5 of the Roads Improvement Act 1925 or of section 85 of the Act of 1925 or of section 66 of the Act of 1931 as amended by sections 69 and 70 of the local Act of 1936 is no longer necessary or desirable and should be revoked the highway authority may by resolution revoke such line or any part thereof and such revocation shall be indicated on the deposited plan showing the building line. Revocation of building line.

(2) Notice of such revocation shall be served upon every owner occupier and lessee of land affected in like manner as notice is required to be served under subsection (2) of the said section 5.

(3) A building line or part thereof shall not be revoked under this section in relation to any road which at the time when the revocation is proposed is a classified road until notification of the proposed revocation has been sent to the Minister of Transport and Civil Aviation and his observations with respect thereto have been considered.

15.—(1) Subsections (1) and (2) of section 84 (Exchanges for road improvements) of the Act of 1925 shall apply to a local authority and shall accordingly have effect with any necessary modifications including the substitution of "a local authority" for "the Council" and for the purposes of the said subsections as so applied section 83 (Roads to which Part VIII applies) of the said Act shall have effect with the substitution of "a local authority" for "the Council". Application of section 84 of Act of 1925 to local authorities.

(2) Where pursuant to the said section 84 a local authority enter into an agreement with a person being the owner of or having an interest in land abutting on any road for the giving in exchange to that person of the site of any part of the road and immediately before the date on which the site ceases to be part of the road there was under in upon over along or across such site any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in

PART III
—cont.

respect of that line as if such site had remained part of the road but nothing in Part I of the Public Utilities Street Works Act 1950 shall have effect in relation to those powers:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

(3) As between a local authority and the Postmaster-General nothing in the foregoing subsection shall affect the operation of Part II of the Public Utilities Street Works Act 1950 or the rights of the Postmaster-General and the local authority thereunder.

(4) Sections 87 (For the protection of certain water undertakers) and 88 (For protection of the Brentford Gas Company) of the Act of 1925 shall apply to the exercise by a local authority of the powers of subsections (1) and (2) of the said section 84 as if—

- (a) for references in the said sections 87 and 88 to the Council there were substituted references to a local authority;
- (b) in the said section 87 the expression “ the undertakers ” included any statutory water undertakers who are authorised to supply water in any part of the county;
- (c) in the said section 88—
 - (i) for references to the Brentford Gas Company or the company there were substituted references to any statutory undertakers who are authorised to supply gas or electricity in any part of the county;
 - (ii) after the word “ pipes ” in paragraph (2) there were inserted the words “ electric lines ”; and
 - (iii) after the word “ gas ” where it occurs in the said paragraph (2) there were inserted the words “ or electricity ”.

Recovery of private street works charges where owner unknown or cannot be found.

16.—(1) Where any private street works in the county have been completed by the Council but the Council are unable to recover the amount due from the owner of any premises or otherwise under the Private Street Works Act 1892 or the provisions of a local Act relating to private street works whichever shall be the appropriate enactment by reason of the fact that such owner is unknown or cannot after diligent inquiry made when the said amount becomes due and at reasonable intervals thereafter

be found the Council may at any time after the expiration of twelve years from the date when the said amount becomes due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Council absolutely and thereupon the Council may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

PART III
—cont.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Council shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925 together with all costs and expenses reasonably incurred by the Council.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Council were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of that Act.

(4) The powers conferred by this section shall be exercisable by the Council in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Council in respect of all private street works whether completed before or after the passing of this Act.

17. The power of the Council to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under any statutory provision for the time being in force in the county relating to private street works in respect of the said expenses against any premises of which a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and

Extension of
power to
contribute to
expenses of
private street
works.

PART III
—cont.

charged against any such premises in respect of the flank thereof shall be reduced by the amount of the contribution made by the Council under this section in respect of such premises.

Crossings over
footways.

18.—(1) Where the occupier of or any person residing in any premises in the county which abut on or have access to any county road (not being a claimed road) habitually takes or permits to be taken a horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle and a vehicle of which the cylinder capacity of the engine does not exceed two hundred and fifty cubic centimetres) across any grass verge or kerbed footway in the road to those premises the Council may give notice to the occupier—

- (a) that they propose to construct across the grass verge or footway a carriage-crossing of such materials and in such manner as they may specify in the notice; or
- (b) in the case of a footway that they propose to strengthen or adapt it in such manner as they may so specify; or
- (c) imposing such reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as they may so specify:

Provided that this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a notice under the foregoing subsection may appeal to a magistrates' court and on any such appeal the court may confirm reverse or vary the notice of the Council.

(3) The Council may agree with the owner or occupier (as the case may be) for the execution by him on their behalf of such works as may have been specified in a notice served under paragraph (a) or paragraph (b) of subsection (1) of this section and where the Council themselves execute such works they may recover the expenses of so doing from the owner or occupier.

(4) If the Council impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a fine not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 if in force in a district shall cease to be in force therein in relation to county roads (not being claimed roads) and if not in force in a district shall not be declared to be in force therein in relation to county roads (not being claimed roads) and the following provisions of this subsection shall have effect in substitution therefor as respects county roads (not being claimed roads) in any district:—

- (a) Any person may request the Council in writing to carry out such works as shall be specified in the request for the purpose of forming a carriage-crossing across a grass verge or footway in any such road or of strengthening or adapting a part of any such footway as a carriage-crossing;
- (b) The Council may approve the request either with or without modifications or propose alternative work or reject the request;
- (c) The Council shall give the person making the request notice of their decision under the foregoing paragraph and if they approve the work requested or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them;
- (d) The person making the request may deposit with the Council the amount of the said estimate and require them to execute the work as approved or proposed by them;
- (e) As soon as practicable after such a deposit has been made the Council shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the Council by or to the person making the request as the case may require.

(7) The code in Part II of the Public Utilities Street Works Act 1950 (which relates to cases where undertakers' apparatus is affected by road works) shall have effect as if works carried out by or on behalf of the Council in pursuance of a notice under subsection (1) of this section or under powers conferred by subsection (6) of this section were works such as are mentioned in paragraph (a) of subsection (1) of section 21 of that Act.

(8) The expenses recoverable under subsection (3) of this section and the cost of the works for the purposes of subsection (6) shall include the cost of any works which are required by the Public Utilities Street Works Act 1950 to be executed in consequence of the construction of the crossing or the strengthening or adaptation of the footway.

PART III
—cont.Variation
of width of
carriageways
and footways.

19.—(1) Subject to the provisions of this section the highway authority may vary the relative widths of the carriageway and footway or footways in any street repairable by them.

(2) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the highway authority shall send notice of the proposed work to the Minister of Transport and Civil Aviation.

(3) The highway authority shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the consent in writing of the railway canal or inland navigation undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

Hoards to
be set up
during
building
operations.

20.—(1) Every person intending to build or take down any building or to alter or repair the outward part of any building in or abutting on any road in the county being a county road (other than a claimed road) shall if required by the Council—

- (a) before beginning the same cause close-boarded hoards or fences to be put up to the satisfaction of the Council in order to separate the building from the road;
- (b) make a convenient covered platform and handrail to serve as a footway for passengers outside such hoard or fence;
- (c) maintain such hoard or fence with such platform and handrail as aforesaid in good condition to the satisfaction of the Council during such time as they may require and cause the same to be lighted in such manner as to give proper warning to the public during the hours of darkness as defined in section 1 of the Road Transport Lighting Act 1927; and
- (d) remove such hoard or fence with such platform and handrail as aforesaid when required by the Council.

(2) Any person aggrieved by a requirement of the Council under the foregoing subsection may appeal to a magistrates' court and on any such appeal the court may confirm reverse or vary the requirement of the Council.

(3) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(4) The provisions of section 80 of the Towns Improvement Clauses Act 1847 and of section 34 of the Public Health Acts Amendment Act 1890 shall not apply to any building operations in respect of which the Council have made requirements under this section.

21.—(1) Where the forecourt of any premises abutting upon a county road (other than a claimed road) in a district is habitually used or is open to use by the public as part of the footway of such road the Council may by notice require the owner or occupier of the forecourt to carry out such work as may be necessary to make good any want of repair to the forecourt or to remove any source of danger to persons using the same.

PART III

—cont.

Maintenance
of forecourts
to which
public have
access.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that—

- (a) for the purposes of paragraph (c) of subsection (3) of the said section 290 if the owner or occupier of a forecourt in respect of which a notice has been served under subsection (1) of this section elects to fence the forecourt and informs the Council of his intention to do so the effective fencing of the forecourt so as to prevent its use by the public shall be a reasonable alternative work;
- (b) the Council may remit in whole or in part as they may think fit the amount of any expenses incurred by them in executing works under subsection (6) of the said section 290.

22.—(1) No person (other than a person selling offering or exposing for sale or depositing for sale any food goods provisions articles or things at any market or fair for which he has paid a toll stallage or rent) shall in the county—

Sale of food
and articles
on verges.

- (a) sell or offer or expose for sale or deposit for sale on the verge of or on any lay-by in any road to which this section applies or on any roadside waste adjacent thereto any food goods provisions articles or things in such a manner that any danger or obstruction is caused or is likely to be caused to persons or vehicles using such road or the footpath adjacent to such verge or roadside waste by—

- (i) such sale or offer or exposure for sale or deposit for sale; or

- (ii) a person buying or examining such food goods provisions articles or things; or

- (iii) a vehicle which had been used by such last-mentioned person; or

- (b) provide erect or place and habitually use any shed hut shelter booth shop or other erection whether on wheels or not or any vehicle on the verge of or on any lay-by in any road to which this section applies or on any roadside waste adjacent thereto for the purpose of selling offering depositing or exposing for sale any food goods provisions articles or things other than newspapers.

PART III
—cont.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings.

(3) This section applies to the classified road A.31 across the Hog's Back between Guildford and Farnham to any other trunk road or county road in the county classified by the Minister of Transport and Civil Aviation under the Ministry of Transport Act 1919 in Class I or Class II to which the Minister of Transport and Civil Aviation may by order on the application of the Council apply this section and to any part of such trunk road or county road classified as aforesaid to which the said Minister may by order on the application of the Council apply this section.

(4) Nothing in this section shall apply—

(a) to the sale of food goods provisions articles or things from a vehicle used as a travelling shop for the purpose of itinerant trading; or

(b) to any fixed or movable shelter or other accommodation for servants of the commission erected maintained or placed by the commission under the provisions of section 65 (Refreshment shelters etc.) of the London Passenger Transport Act 1938.

Removal of
bottles from
roads.

23.—(1) Subject to the provisions of this section a local authority may cause to be removed any bottle found in a county road (not being a claimed road) or on the forecourt of any premises abutting on such a road being a forecourt which is unfenced and is habitually used or is open to use by the public as part of the footway of that road.

(2) Any bottle removed under this section shall be the property of the local authority and subject to the provisions of this section the local authority may sell or otherwise dispose of it in such manner as they think fit.

(3) Where representations in writing are made to a local authority by a body which appears to them substantially to represent the interests of persons carrying on business in the district of the local authority as sellers by retail of milk for human consumption that such person as may be specified in the representations is willing to collect from the local authority any bottles which they have caused to be removed under this section and which are of a kind commonly used by persons carrying on business as aforesaid for the delivery of milk to their customers and that person notifies the local authority in writing that he is so willing the local authority shall not (except as may otherwise be agreed with such person) sell or otherwise dispose of any such bottles unless—

(a) they give notice to such person stating that the bottles may be collected at such place as may be specified in the notice at such reasonable times as may be so specified; and

(b) such person within seven days of the service of such notice fails to collect the bottles from such place as aforesaid;

and any bottles so collected shall cease to be the property of the local authority.

(4) A local authority may recover in any court of competent jurisdiction as a simple contract debt from the person on whom they have served notice under paragraph (a) of the last foregoing subsection the reasonable costs and expenses incurred by them in the removal and retention of any bottles to which that notice relates.

(5) Nothing in this section shall authorise the removal of a bottle which appears to be in use or to have been used for the supply of a commodity to or for the use of a person on any premises or for sale on such premises and to have been placed or deposited in the position in which it is found for the purpose of enabling it to be collected by or on behalf of the person by whom or for whom the commodity was supplied if in any such case either—

(a) the bottle has been placed or deposited as aforesaid on the forecourt of the premises; or

(b) where the premises have no forecourt the bottle has been placed or deposited for the purposes aforesaid in the road as near as is reasonably practicable to an entrance to the premises from the road:

Provided that this subsection shall not apply to any bottle which has remained substantially in the position in which it was placed or deposited for a period exceeding four days exclusive of Christmas Day Good Friday and any bank holiday.

(6) Nothing in this section shall prejudice or affect the exercise by a local authority of their functions as a highway authority or in relation to the sweeping and cleansing of streets or the collection and removal of street refuse therefrom.

(7) In this section—

“ bottle ” means a bottle jar or other similar container; and

“ street refuse ” means dust dirt rubbish mud road-scrappings ice snow or filth.

24.—(1) In any street in the county not being a highway Urgent repairs repairable by the inhabitants at large the Council may execute of private streets. such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the county fund:

Provided that the cost of the repairs executed in any street in any period of three consecutive years under this section shall not exceed fifty pounds for each one hundred yards of the length of the street.

PART III
—cont.

(2) The exercise by the Council of their powers under this section shall not prejudice their powers under any enactment relating to private street works for the time being in force in the county.

PART IV

BUILDINGS STRUCTURES ETC.

Fire appliances
at camping
grounds.

25.—(1) The Council may make byelaws for securing the provision of first-aid fire appliances and of means of summoning fire brigades and for the taking of other safety measures by the owner of any camping ground which is provided and habitually used for the placing of movable dwellings:

Provided that nothing in any byelaws made under this section shall apply to any camping ground on which no movable dwellings are situated other than those belonging to travelling showmen (not being pedlars hawkers or costermongers) and regularly used by them in the course of travel for the purpose of their business.

(2) Different byelaws may be made under this section for different types of movable dwellings and for camping grounds used for different purposes or of different capacities.

(3) In this section the expression “movable dwelling” has the meaning assigned to it by section 55 of the Act of 1931.

Precautions
against fire
in certain
buildings.

26.—(1) Where plans for the erection of a building are in accordance with building byelaws deposited with a local authority and the plans show that the building will not be provided with such means of access for fire brigade appliances and personnel as the local authority may after consultation with the fire authority consider necessary to enable effective action to be taken by the fire authority in case of fire at such building the local authority shall reject the plans.

(2) If the local authority reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between a local authority and the person by whom or on whose behalf the plans are deposited as to whether the plans show that the building will be provided with the necessary means of access for fire brigade appliances and personnel shall on the application of that person be determined by a magistrates’ court.

Further
provision
for fire
precautions.

27. Section 59 (Exits entrances &c. in the case of certain public and other buildings) of the Act of 1936 shall have effect in the county as if the words “covered market or sale room” were inserted after the word “warehouse” in paragraph (b)

of subsection (5) thereof and as if the words "and in which twenty or more persons are employed" were omitted from that paragraph:

PART IV
—cont.

Provided that nothing in this section shall apply to premises in respect of which there is a justices' licence for the sale of intoxicating liquor for consumption on the premises or to premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force.

28.—(1) No building of the warehouse class and no building used or intended to be used for the purpose of trade or manufacture shall be erected of a cubic extent exceeding two hundred and fifty thousand cubic feet unless (in accordance with plans and particulars submitted in accordance with building byelaws and approved for the purposes of this section after consultation with the fire authority by the local authority of the district in which the building is to be erected or is situate) it is—

Fire
precautions
in certain
large
buildings.

- (a) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) fitted with automatic fire alarms and a fire extinguishing system or with such alarms or such system to the satisfaction of the local authority after consultation with the fire authority or divided by fire division walls constructed to the satisfaction of the local authority after such consultation in such a manner that no division of a building or part of a building is of a cubic extent greater than two hundred and fifty thousand cubic feet:

Provided that nothing in paragraph (a) of this subsection shall apply to a factory to which section 34 of the Factories Act 1937 applies or to buildings to which section 59 (Exits entrances &c. in the case of certain public and other buildings) of the Act of 1936 applies.

(2) The person proposing to erect or cause to be erected any building to which subsection (1) of this section applies shall when submitting plans and particulars in accordance with building byelaws deposit with the local authority particulars showing how it is proposed to comply with the requirements of paragraphs (a) and (b) of subsection (1) of this section.

A local authority at any time within a period of two months after the deposit of the particulars irrespective of any decision under building byelaws—

- (i) may refuse to approve them; or

PART IV
—cont.

(ii) may approve them subject to such conditions (if any) as after consultation with the fire authority they think fit; in either of which cases they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions. If within that period the local authority fail to give such notice they shall be deemed to have approved the said particulars.

(3) If any building to which the preceding subsections are applicable contravenes any of the requirements of paragraphs (a) or (b) of subsection (1) of this section the local authority without prejudice to their right to take proceedings for penalties in respect of the contravention may by notice require the person erecting or causing to be erected the building either to pull down and remove it or if he so elects to effect such alterations therein as may be necessary in order to comply with the said requirements.

(4) (a) A person who erects or causes to be erected a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

(b) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

(5) Any person aggrieved by a requirement of a local authority under subsections (1) or (2) of this section may appeal to a magistrates' court and on any such appeal the court may confirm reverse or vary the requirements of the local authority.

(6) Nothing in this section shall apply to any building—

(a) in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force; or

(b) exempted from the provisions of Part II of the Act of 1936 with respect to building byelaws by section 71 (c) of that Act.

Commemora-
tive and other
plaques.

29. The Council may on a conspicuous external part of any house building or place in the county cause to be put up with the consent of the owner of such house building or place commemorative plaques and plaques indicating—

(a) events of public interest in connection with such house building or place or the site thereof; or

(b) that such house or building is of special architectural or historic interest;

and may thereafter with the like consent maintain any such plaque or any plaque put up by any other person or body.

30.—(1) The Council may in relation to any substance to which this section applies—

PART IV
—cont.

Prescription
of signs etc.
to be used on
certain
buildings.

(a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger from fire;

(b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix within such reasonable time as is specified in the notice and thereafter keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage the appropriate sign symbol or notice.

(2) This section applies to any substance likely to involve special hazard to persons engaged in normal duties of fire fighting.

(3) Any person who fails to comply with the requirements of the Council under this section shall be liable on conviction to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

31. Nothing in any byelaws made under section 25 (Fire appliances at camping grounds) of this Act shall apply to—

Savings from
provisions of
section 25.

(a) any camping ground provided by or belonging to or used by any portion of Her Majesty's naval or military or air forces or which may be certified as under supervision of or by a territorial army association or an auxiliary air force association or a county joint association;

(b) any movable dwelling or camping ground provided by or belonging to or used by any duly constituted religious or other charitable society or body operating in any part of Great Britain to the main object of which the provision ownership or use of movable dwellings or camping grounds is merely subsidiary Any question whether a society or body is a society or body within the meaning of this paragraph shall be determined by the Charity Commissioners for England and Wales or in the case of a society or body whose main object is educational by the Minister of Education;

(c) any camping ground provided by or belonging to or used by the members of the Boy Scouts Association or the Girl Guides Association;

PART IV
—cont.

- (d) any camping ground provided by or belonging to or used by the members of any other duly constituted society or body operating throughout Great Britain which by their rules undertake responsibility for the management of the camping grounds provided by or belonging to them or used by their members and for the good conduct of their members when in camp;
- (e) any movable dwelling situate on any such camping ground as is referred to in the foregoing paragraphs (c) and (d) while the dwelling is occupied or used by the members of any society body or association referred to in those paragraphs; or
- (f) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder (not being a pedlar or hawker):

Provided that—

- (i) the exemption conferred by the foregoing paragraph (b) in respect of any movable dwelling or camping ground referred to in that paragraph shall apply only for so long as the society or body by or to which such movable dwelling or camping ground is provided or belongs or is used shall continue to make reasonable arrangements for the maintenance of good order amongst the persons using the movable dwelling or for the proper management of the camping ground;
- (ii) the exemptions conferred by the foregoing paragraphs (c) (d) and (e) in respect of any camping ground or movable dwelling referred to in those paragraphs shall apply only so long as the society body or association by or to which such camping ground is provided or belongs or is used or by the members of which such movable dwelling is occupied or used are duly exercising responsibility for the management of the camping ground and for the good conduct of their members when in camp thereon;
- (iii) the exemption conferred by the foregoing paragraph (f) on any person referred to in that paragraph shall apply only so long as such person is not guilty of any misconduct; and
- (iv) if any society body or association referred to in the said paragraphs (b) (c) and (d) are using any camping ground provided by a local authority or if any person being a member of any such society body or association or a person referred to in the said paragraph (f) is occupying or using a movable dwelling situate on any camping ground so provided the members of such society body or association or such person shall while camping on

or occupying or using any movable dwelling situate on that camping ground comply with any byelaws made by the local authority under section 25 of this Act respecting that camping ground.

PART IV
—cont.

PART V

PARKS OPEN SPACES COMMONS ETC.

32.—(1) The Council may in any open space park or pleasure ground or refreshment room in any open space park or pleasure ground for the time being belonging to them or under their control or in any civic or other public building for the time being belonging to them or under their control provide and sell refreshments of any kind (other than intoxicating liquor) subject to the provisions of all enactments relating thereto.

Sale of
refreshments
in open
spaces etc.

(2) Refreshments shall not be provided under this section in connection with the giving of any entertainment or the holding of any dance pursuant to section 132 of the Local Government Act 1948.

33.—(1) Notwithstanding section 5 of the Metropolitan Commons Act 1866 the Minister of Agriculture Fisheries and Food may entertain an application by the Council as respects a county road (except a claimed road) or by a local authority in the case of any other highway (not being a highway repairable by the commission) in the district of that authority for consent to the inclosure of such portions of any metropolitan common within the meaning of the Metropolitan Commons Acts 1866 to 1898 in the county as may be required by the Council or the local authority as the case may be for the purpose of constructing new roads or improving roads.

Metropolitan
commons.

(2) In any case where the Minister of Agriculture Fisheries and Food gives or has previously to the coming into operation of this Act given his consent to the inclosure of any portion of a metropolitan common for the purposes specified in the last foregoing subsection that portion shall cease for all purposes (a) to form part of that common and (b) to be subject to any Act or scheme made or established for the local management of that common by the conservators or other body or person charged with the control regulation and management thereof.

(3) Any land given in exchange for land inclosed for the purposes specified in subsection (1) of this section shall be subject to the like rights trusts and incidents as attached to the land so inclosed immediately before such inclosure to the intent (a) that such land given in exchange shall be controlled regulated and managed by the conservators or other body or person charged as aforesaid and (b) that any byelaws and regulations made under any Act or scheme established as aforesaid shall be

PART V
—cont.

enforceable as fully and effectually as if the land so given in exchange formed part and had always formed part of the metropolitan common from which the land inclosed is severed.

(4) A plan showing the boundaries of any such portion of a metropolitan common as is mentioned in subsection (2) of this section and of any such land given in exchange therefor as is mentioned in subsection (3) of this section sealed with the seal of the conservators or other body or person charged as aforesaid shall be deposited by them with the Minister of Agriculture Fisheries and Food.

(5) Section 21 of the Public Utilities Street Works Act 1950 shall apply to the construction of any new road on any portion of a metropolitan common inclosed under the provisions of this section as if such construction were a work executed for road purposes within the meaning of paragraph (a) of subsection (1) of the said section 21 and were of the kind referred to in that section and as if any apparatus in such portion of a metropolitan common were in a street or in controlled land abutting on a street.

PART VI

FINANCE

Power to
borrow.

34.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority such sums as may be necessary for paying the costs charges and expenses of this Act;
- (c) without the consent of any sanctioning authority such sums as may be requisite for the purpose of lending to a local authority under section 36 (Power to Council to lend money to local authorities etc.) of this Act.

(2) The Council shall pay off all moneys borrowed under paragraph (b) of the foregoing subsection within such period as the Council may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Use of moneys
of consolidated
loans fund.

35. In addition to the purposes for which the moneys of the consolidated loans fund established by the Council in pursuance

of section 133 of the Act of 1931 may be used or applied the Council may lend such moneys to any local authority in exercise of the powers of section 36 (Power to Council to lend money to local authorities etc.) of this Act.

PART VI
—cont.

36.—(1) The Council may lend to any local authority and a local authority may borrow from the Council such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment thereof.

Power to
Council to
lend money
to local
authorities etc.

(2) Any agreement under this section may be made by resolutions passed respectively by the Council and by the local authority.

(3) The Council may borrow such sums as may be required for the purpose of lending money to local authorities under this section and the provisions of Part IX of the Act of 1933 shall extend to money borrowed by the Council under this section as if it were borrowed under the said Part IX:

Provided that the consent of the sanctioning authority shall not be required.

(4) Every sum borrowed by the Council under this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(5) In this section the expression "local authority" means the council of any county or county district and any authority being a local authority as defined by section 34 of the Local Loans Act 1875 and includes any river board or drainage board and any joint board if all the constituent authorities are such local authorities as aforesaid.

37.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the local authority so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the local authority from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

Recovery of
rates from
certain
owners.

The remedy of the local authority under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

PART VI
—cont.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the local authority.

Recovery of rates from tenants and lodgers.

38. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the county shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

Power to charge in respect of establishment expenses.

39. Whenever under any enactment (other than the Act of 1936) the Council on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Council may include in and recover as part of such cost such additional sum as they think fit not exceeding five per centum of the cost of the works in respect of their establishment charges.

Service of demand notes.

40. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Council.

PART VII

SUPERANNUATION PENSIONS ETC.

Investment of super-annuation fund.

41. In its application to the Council subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest certain moneys forming part of the superannuation fund maintained by the Council under that Act there were substituted the obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof respectively; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality county or district council or local or public authority or board in the United Kingdom or any such dominion commonwealth union dependency colony province or state as aforesaid

authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or

- (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or
- (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated under any general Act of the United Kingdom Parliament being stock or shares which are at the time of making the investment quoted on the London Stock Exchange; or
- (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof shall have at least sixty years to run; or
- (g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value;

with the like power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that no investment shall be made under the powers of paragraph (e) of this section—

- (i) unless the company shall have paid interest or dividends thereon (as the case may be) at the rate of at least five per centum per annum for not less than four years prior to the date of investment; and
- (ii) so long as the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

42. Notwithstanding anything in the Local Government Superannuation Acts 1937 to 1953 the Council shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1920 1924 1944 1947 1952 and 1956 or any other superannuation pension compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Council in such manner and at such times as they may from time to time require of the continued existence of such person.

As to proof
of continued
existence of
pensioners.

PART VII
—cont.

Additional
evening
instruction
excluded for
super-
annuation.

43. The salary wages fees and other payments paid or made to an employee of the Council as an instructor or leader at or for the purposes of an evening institute technical college technical institute school of art voluntary organisation youth organisation or evening class where such employment is in addition to his ordinary employment shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953 or any other enactment affecting the superannuation fund maintained by the Council under those Acts and the service of any such employee in any such employment shall not be reckoned as service for any of the purposes of those Acts.

PART VIII

MISCELLANEOUS

Social
rehabilitation.

44.—(1) For the purpose of rehabilitating any family (hereafter in this section referred to as “a special family”) residing in the county which or any member of which requires special treatment to fit them or him to be useful members of the community the Council may—

- (a) either within or without the county provide equip staff and maintain training centres for the accommodation and training of special families or any member thereof;
- (b) employ persons specially skilled by experience or training in the subject of social rehabilitation (hereafter in this section referred to as “special home visitors”) to give advice or training to special families in their homes;
- (c) supply to any special family such furniture fittings and conveniences as the Council may think fit and for that purpose buy furniture fittings and conveniences.

(2) (a) Instead of themselves providing training centres and employing special home visitors the Council may make arrangements with any voluntary organisation for the provision by that organisation of training centres or for the employment by them of special home visitors as aforesaid and may make contributions towards the expenses of any such voluntary organisation as aforesaid.

(b) In this subsection “voluntary” has the same meaning as in the National Health Service Act 1946.

(3) The Council may recover from any person to whom any furniture fittings or conveniences have been supplied under paragraph (c) of subsection (1) of this section such charges (if any) as having regard to the cost of the furniture fittings or conveniences the Council may determine whether generally or in the circumstances of any particular case.

(4) The provisions of section 58 of the National Health Service Act 1946 shall extend and apply for the purposes of paragraph (a) of subsection (1) of this section as if those purposes were one of the purposes of the said Act of 1946.

45. Where a person has to remove from a house in consequence of its acquisition by the Council or of any other action taken by them the Council may pay to him such reasonable allowances as they think fit towards his expenses in removing.

PART VIII

—cont.

Power to make allowances for removing.

46. The period now limited by section 15 (Period for completion of works) of the Surrey County Council (Hogsmill River Improvement) Order 1942 confirmed by the Land Drainage (Surrey County Council (Hogsmill River Improvement)) Provisional Order Confirmation Act 1942 for the completion of the works authorised by Part II of the said order is hereby further extended until the thirty-first day of December nineteen hundred and sixty-five.

Extension of time for completion of certain works.

47. Section 37 (Music and dancing licences) of the Act of 1931 shall have effect as if there were inserted at the end of subsection (4) of the said section a proviso as follows:—

Amendment of section 37 of Act of 1931.

“ Provided that no such member of the public shall be entitled to be heard unless he shall have given to the applicant for a licence or for a transfer or renewal of a licence under this section and to the Council not less than seven days before the hearing of the application notice in writing of his objection to the application.”

48.—(1) An enforcement notice served by the Council as local planning authority under section 23 of the Act of 1947 in respect of the use of land as a site for movable dwellings may state the number of such dwellings on the land immediately before the date of service of the notice.

Unauthorised use of land as site for movable dwellings.

(2) If during the period between the service of the notice and (a) the date when any application which may be made to the Council as local planning authority under proviso (a) to subsection (3) of section 23 of the Act of 1947 is finally determined or (b) the date when any appeal which may be made to the court under proviso (b) to that subsection and subsection (4) of the said section 23 of the Act of 1947 is finally determined or withdrawn the owner or occupier of the land without planning permission increases or permits any increase in the number of movable dwellings (not being a movable dwelling which belongs to a member of the Showmen's Guild of Great Britain and which is regularly used by him in the course of travelling for the purpose of his business) on the land beyond the number stated in the notice he shall be guilty of an offence.

(3) If any person is guilty of an offence under subsection (2) of this section he shall be liable upon summary conviction to a fine not exceeding fifty pounds and to a daily fine not exceeding ten pounds.

(4) In this section the expression “ movable dwelling ” means any structure capable of being moved from place to place (other

PART VIII
—cont.

than a tent) and any van cart carriage truck tramcar motor car caravan trailer or other vehicle used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—

- (i) any structure or vehicle temporarily used by shepherds labourers or other persons for farming agricultural or other like purposes; or
- (ii) any structure or vehicle temporarily used for the service of the Council or of any local authority or other public authority; or
- (iii) any canal boat or other boat.

(5) Nothing in this section shall apply to the use of land for the purposes of recreation or instruction by members of an organisation which holds a certificate of exemption granted by the Minister under section 269 of the Act of 1936 or the erection or placing of tents or caravans on the land for the purposes of that use.

(6) Subject as hereinafter provided this section shall continue in force during a period of five years from the passing of this Act:

Provided that—

- (i) the expiry of this section shall not affect—
 - (a) anything duly done or suffered thereunder; or
 - (b) any right privilege obligation or liability acquired accrued or incurred thereunder; or
 - (c) any legal proceeding arbitration remedy or investigation in respect of any such right privilege obligation or liability as aforesaid;
 and any such legal proceeding arbitration remedy or investigation may be instituted enforced or continued as if this section had not expired; and
- (ii) the Minister may if he thinks fit on the application of the Council made not earlier than six months before the end of the said period of five years make such order as he may deem necessary for the permanent continuance in force of this section.

Preservation
and
publication
of records.

49. The Council may preserve arrange index classify and publish or contribute to the publication of such records deeds and other documents of the county and of the Council or such extracts from them or reference to their contents as the Council may consider to be of public interest.

Provision of
reciprocal
services etc.
by Council
and local
authority.

50.—(1) For the better performance of their respective powers or duties provision may be made by agreement between the Council and a local authority or a local authority and the Council

for the taking by either party thereto of action of the following kinds:—

PART VIII
—cont.

- (a) the undertaking by one party for the other of any administrative clerical professional or technical services;
- (b) the use or maintenance by one party of any vehicle plant equipment or apparatus of the other party and if it appears convenient the services of any staff employed in connection therewith;
- (c) the carrying out of works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible.

(2) In this section the expression “maintenance” means minor renewals improvements and extensions.

(3) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Act of 1936 it shall be made under the said section 271 and not under this section.

51.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

False
statements
to obtain
benefits.

- (a) knowingly makes to the Council or to a local authority or to any of their employees a false statement or false representation relating to his or that other person's need for the benefit or advantage or ability to pay a rent or make other payment; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Council or to a local authority or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

- (a) the occupation of any house belonging to the Council;
- (b) a rebate of the rent of any such house;
- (c) a reduction in the amount of any payment due to the Council by virtue of the following enactments or of regulations made thereunder or the remission of any such payment:—
 - (i) the Children and Young Persons Act 1933;
 - (ii) the Education Acts 1944 to 1953;
 - (iii) the Children Act 1948; or
- (d) any award grant contribution or payment made by the Council under the Education Acts 1944 to 1953 or under or by virtue of any regulations made under those Acts.

PART VIII
—cont.

(3) If any person is convicted of an offence under this section the court may—

- (a) terminate the tenancy of the house of which occupation had been obtained and order possession thereof to be given to the Council;
- (b) order the person convicted to pay to the Council the amount of the rebate or reduction obtained by him;
- (c) order the person convicted to make such payments as the court may think just to the Council in respect of—
 - (i) the reduction in the amount of any payment referred to in paragraph (c) of the last foregoing subsection or the remission thereof; or
 - (ii) any award grant contribution or payment referred to in paragraph (d) of that subsection.

(4) For the purposes of this section the expression “house” includes any part of a house which is occupied or intended to be occupied as a separate dwelling.

Return of
library books
etc.

52.—(1) In this section—

“a library” means any library maintained under the Public Libraries Acts 1892 to 1919 by the Council as a library authority (either alone or in combination with another authority);

“article” includes a book gramophone record picture print map or document.

(2) Any person borrowing an article from a library shall not be entitled to retain the same after the expiration of such period (not being in the case of a book less than fourteen days) after the date of the borrowing thereof as may be prescribed in relation to that article by the Council and for the purposes of this provision the Council may prescribe different periods for different kinds of books or articles.

(3) Without prejudice to any other powers with respect to articles borrowed from a library the Council may recover from any person failing to return any article borrowed from that library within such period as may be prescribed as aforesaid such reasonable sum as they may prescribe in respect of each day or each week or part of a week during which he fails to return the article together with any expenses incurred in sending to him notices in respect of the article:

Provided that in the case of a book the sum prescribed as aforesaid shall not exceed sixpence in respect of any week or part of a week during which the book is not returned as aforesaid.

(4) When any article is reserved by the Council as a library authority for any person the Council may recover from him such sum in respect of the reservation as they may prescribe.

(5) Where the Council become entitled under this section to recover any sum from any person that person shall not have any right until that sum has been duly paid to borrow any other article from any library maintained by the Council.

PART VIII
—cont.

53.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may subject to any direction of the Council appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation
of powers to
sub-
committees.

(2) Except in pursuance of powers conferred by any enactment two-thirds of the number of the members of any such sub-committee shall be members of the Council.

(3) The powers of this section shall be in addition to the powers of any committee of the Council to appoint sub-committees under any other enactment.

54. The provisions of section 48 (Unauthorised use of land as site for movable dwellings) of this Act shall apply to a local authority and shall have effect with any necessary modifications including the substitution of the expression "local authority" for "Council".

Application
of provision
of Part VIII
to local
authorities.

55. Section 96 (Joint planning committee) of the Act of 1931 is hereby repealed.

PART IX

GENERAL

56.—(1) Where under any enactment—

Liability of
Council for
work done
in default or
by request.

(a) the Council require any person (in this section referred to as "the defaulter") to execute any work or take any action; and

(b) in default or at the request of the defaulter the Council or any of their officers execute the work or take the action;

then in the absence of negligence on the part of the Council or of any such officer or of any contractor employed by them or him—

(i) the Council shall not as between themselves and the defaulter be liable to pay any damages in respect of or consequent upon the execution of the work or taking of the action; and

PART IX
—cont.

(ii) any such damages as aforesaid paid by the Council to any other person shall be deemed to be part of the expenses payable by the defaulter and shall be recoverable accordingly.

(2) In this section the expression "damages" includes fines costs and charges.

Breach of
conditions
of consent.

57. Where in pursuance of the Act of 1925 the Act of 1931 the local Act of 1936 or this Act a local authority give their approval or consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required approval or consent and the provisions of this section shall mutatis mutandis apply to conditions imposed by any highway authority under any provision of any of those Acts.

Restriction on
right to
prosecute.

58. Proceedings in respect of an offence created by or under this Act (not being an offence created by or under section 22 (Sale of food and articles on verges) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council or the local authority as the case may be.

Apportion-
ment of
expenses in
case of joint
owners.

59. Where under the provisions of any enactment the Council shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those enactments or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Council or in case of dispute by a magistrates' court.

Damages and
charges to
be settled
by court.

60. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any fine for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Compensa-
tion how
to be
determined.

61. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Confirming
authority for
byelaws.

62. In the case of byelaws made under section 25 (Fire appliances at camping grounds) of this Act the confirming authority shall be the Secretary of State.

63.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a court of summary jurisdiction under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

PART IX
—cont.

Appeals.

(2) Where any requirement refusal or other decision of the Council a local authority or a highway authority against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council the local authority or the highway authority themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

64.—(1) No matter or thing done and no contract entered into by the Council and no matter or thing done by any member of the Council or by any officer of the Council or other person whomsoever acting under the direction of the Council shall if the matter or thing were done or the contract were entered into bona fide for the purpose of carrying out any powers or duties of the Council under any local enactment subject any member or officer of the Council or other person as aforesaid personally to any action liability claim or demand whatsoever and any expense incurred by the Council or any such member officer or other person acting as aforesaid shall be borne and repaid out of the county fund:

Protection
of members of
Council and
their officers
from personal
liability.

Provided that nothing in this section shall exempt any member or officer of the Council from liability to be surcharged with the amount of any expenditure which may be disallowed by the district auditor in the accounts of the Council and which such member or officer incurred or authorised or joined in incurring or authorising.

(2) Section 169 (Protection of county council and their officers from personal liability) of the Act of 1931 is hereby repealed.

PART IX

—cont.

Application
of general
provisions of
Act of 1936.

65.—(1) The sections of the Act of 1936 mentioned in Part I of the Second Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act that is to say:—

Part III (Highways and streets); and

Part VIII (Miscellaneous) except section 52 (Return of library books etc.).

(3) In their application to this Act the sections of the Act of 1936 mentioned in the Second Schedule to this Act shall have effect as if the expression “local authority” included the Council and any local authority.

Arbitration.

66. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) unless other provision is made or it is otherwise agreed the arbitrator shall be appointed by the Minister.

Crown rights.

67. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Council to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Saving for
powers of
Treasury.

68. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
town and
country
planning.

69. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

For pro-
tection of
certain
statutory
undertakers.

70. For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the Council and the undertakers concerned apply and have effect:—

(1) In this section unless the subject or context otherwise requires—

“apparatus” means—

(a) in relation to the London Electricity Board the South Eastern Electricity Board the Southern

Electricity Board or the Central Electricity Generating Board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by any of such undertakers;

(b) in relation to the North Thames Gas Board the South Eastern Gas Board or the Southern Gas Board mains pipes or other apparatus belonging to or maintained by any of such undertakers; and

(c) in relation to such of the undertakers as are statutory water undertakers mains pipes or other apparatus belonging to or maintained by any of such undertakers;

and includes any works constructed for the lodging therein of apparatus;

“undertakers” means—

the London Electricity Board;

the South Eastern Electricity Board;

the Southern Electricity Board;

the Central Electricity Generating Board;

the North Thames Gas Board;

the South Eastern Gas Board;

the Southern Gas Board; and

the statutory water undertakers who are authorised to supply water in any part of the county;

or any of them:

- (2) Nothing in section 20 (Hoards to be set up during building operations) of this Act shall relieve the Council or any person acting by the requirement of the Council from liability for damage caused by them or him to any apparatus in exercise of the powers of that section and the Council or such person shall so exercise those powers as not to render less convenient (so far as is reasonably practicable) the access to any apparatus:
- (3) Nothing in section 30 (Prescription of signs etc. to be used on certain buildings) of this Act shall apply to any building used for the manufacture distribution or storage of gas or the generation distribution or supply of electricity except with the consent of the undertakers concerned:
- (4) (a) Any difference which may arise between the Council and the undertakers under this section shall be referred to arbitration;

PART IX
—cont.

(b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may if he thinks fit require the Council to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

Costs of
Act.

71. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

SCHEDULES

FIRST SCHEDULE

Sections 4 10

THIS DEED is made the Twenty-fifth day of May One thousand nine hundred and thirty-nine BETWEEN THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WIMBLEDON in the County of Surrey acting by the Council (hereinafter called "the Corporation") of the one part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called "the County Council") of the other part

WHEREAS under and by virtue of the several Instruments mentioned in the First Schedule hereto the Corporation have from time to time acquired and are now the owners in fee simple free from incumbrances of the plots of land more particularly described in the said First Schedule and distinguished by the colours red blue and green on the plan attached hereto (hereinafter referred to as "the said lands") subject as therein mentioned and particularly as to part thereof to the Lease subsisting between the Corporation and the Royal Wimbledon Golf Club and hereinafter referred to

AND WHEREAS the total cost to the Corporation in respect of the acquisition of the said lands has been the sum of One hundred and sixty-one thousand two hundred and forty-four pounds (£161,244)

AND WHEREAS the County Council to the intent that the said lands shall for all time be preserved from building development and held and maintained in perpetuity as open spaces have contributed a sum of Twenty thousand one hundred and twenty-one pounds (£20,121) towards the cost of the acquisition of the said lands in consideration of the Corporation making the declaration and entering into the covenants hereinafter contained

NOW THIS DEED WITNESSETH as follows:—

1. This Deed is made in consideration of the aforesaid contribution and by virtue of the powers conferred by the Public Health Acts 1875-1936 the Open Spaces Act 1906 the Physical Training and Recreation Act 1937 section 37 of the Wimbledon Corporation Act 1933 and all other powers statutory or otherwise applicable in this behalf.

2. The Corporation in pursuance of the aforesaid powers statutory or otherwise applicable in this behalf and of their desire to preserve the said lands in manner hereinafter appearing hereby covenant and declare that the said lands shall (subject to the provisions of this Deed and to the terms and conditions of the said Lease between the Corporation and the Royal Wimbledon Golf Club) be held and maintained by the Corporation in perpetuity as open spaces as hereinafter more particularly mentioned.

3. The Corporation to the intent and so as to bind the said lands into whosoever hands the same may come hereby covenant with the County Council in manner following that is to say:—

(1) That the said lands or any part thereof shall not at any time hereafter be used without the written consent of the County Council previously had and obtained (which consent shall not unreasonably be withheld) for any purpose other than

(a) a public open space within the meaning of the Open Spaces Act 1906; or

1ST SCH.
—cont.

(b) public walks and pleasure grounds within the meaning of the Public Health Acts 1875-1936; or

(c) outdoor games or recreations authorised by section 4 (1) of the Physical Training and Recreation Act 1937; or

(d) any purpose similar to and extending sub-clauses (a) (b) and (c) above which may hereafter be authorised by statute

Provided always that with respect to the area of land containing approximately 145 acres (forming part of the said lands) and now in lease to the Royal Wimbledon Golf Club no consent under the terms of this clause shall be required to the continued use thereof for the purposes of a Golf Course by the said Golf Club for a term of Sixty years (60 years) from the First day of January One thousand nine hundred and thirty-nine at a yearly rent of Two thousand three hundred pounds (£2,300) under and by virtue of a Lease dated the Eighth day of May 1939 and made between the Corporation of the one part and Frederick William Brown Gerald Hamilton Sim and Ralph Yeo Sketch the Trustees of the Royal Wimbledon Golf Club of the other part but so that the Corporation shall not after any part of the said lands shall have been used for any of the public purposes or the purposes authorised by this clause use or permit or suffer that part thereof to be used for any purpose other than some one or more of the public purposes aforesaid without the written consent of the County Council first had and obtained as aforesaid;

- (2) That no building shall at any time be erected on any part of the said lands other than a building which is ancillary to the purpose or purposes (so authorised as aforesaid) for which the said lands or the appropriate part or parts thereof is or are for the time being in use unless the consent thereto in writing of the County Council shall have been first had and obtained as aforesaid;
- (3) That in permitting or allocating facilities for the use of the said lands or any part thereof the Corporation shall not at any time make any discrimination between the inhabitants of Wimbledon and the inhabitants of Surrey and any other persons;
- (4) The Corporation shall not without the written consent of the County Council first had and obtained as aforesaid grant or in any other manner accede to any application which may hereafter be made by any lessee or tenant of the said lands or of any part thereof for the term of his Lease or Tenancy to be waived or modified in such a manner as will permit the lands comprised in the Lease or Tenancy or any part thereof to be used (whether by such Lessee or Tenant or by any person authorised by him) in manner inconsistent with the provisions of clause 3 (1) hereof.

4. The Corporation hereby further covenant with the County Council that if at any time hereafter the Corporation shall receive or become entitled to receive any sum for betterment under section 21 of the Town

and Country Planning Act 1932 from the owner or owners for the time being of lands adjoining or neighbouring to the said lands or any of them for increase in value of such adjoining or neighbouring lands by reason of the covenants provisions and stipulations hereinbefore contained or if the Corporation shall at any time hereafter receive any sum by way of grant from the Board of Education under the provisions of the Physical Training and Recreation Act 1937 towards the expenses of the Corporation in making the said acquisitions or any part or parts thereof the Corporation shall (subject in the case of betterment to the approval of the Minister of Health under section 32 of the Town and Country Planning Act 1932) within one month of the receipt by them of any such sum pay to the County Council such a proportion of the sum so received as the said sum of Twenty thousand one hundred and twenty-one pounds (£20,121) now contributed by the County Council bears to the said cost of the said acquisitions of One hundred and sixty-one thousand two hundred and forty-four pounds.

5. (a) With respect to such of the said lands as may be registered in H.M. Land Registry the Corporation and the County Council hereby jointly agree to apply to the Chief Land Registrar for the entry of particulars of this Deed upon the Charges Register of the said Registry in respect of Title Nos. P. 43397 and P. 8821;

(b) With respect to the remainder of the said lands the Corporation consent to particulars of this Deed being registered as a Land Charge pursuant to the Land Charges Act 1925.

6. It is hereby expressly covenanted agreed and declared by and between the Corporation and the County Council that this Deed (which for the purpose of this clause and of the Bill hereinafter referred to is and shall be called "the Scheduled Deed") shall be scheduled to the next Bill in Parliament promoted by either the Corporation or the County Council (whichever shall be the earlier) and that there shall be included in such Bill a clause in the form set out in the Second Schedule hereto or in such other form to the like effect as may be agreed between the Corporation and the County Council and further that the Corporation and the County Council shall use their best endeavours respectively to procure the passing of such clause into law as part of the Bill.

In witness whereof the respective Seals of the Corporation of Wimbledon and of the County Council of the Administrative County of Surrey were hereunto affixed the day and year first before written.

THE FIRST SCHEDULE before referred to

First All that plot of land hereditaments and premises containing 33a. 2r. 14p. or thereabouts being land at Coombe comprised in and conveyed by a Conveyance dated the Eighteenth day of August One thousand nine hundred and thirteen and made between Sir Adolphus Augustus Frederick Fitz-George and Sir Augustus Charles Frederick Fitz-George of the one part and the Corporation of the other part and being the land coloured red on the plan attached hereto Together with the easements and appurtenances thereto belonging except and reserved as therein more particularly mentioned

1ST SCH.
—cont.

Secondly All those several plots pieces or parcels of land (containing in the whole 146.28 acres or thereabouts) comprised in and more particularly described in the second schedule to a Conveyance dated the Twenty-fifth day of November One thousand nine hundred and thirty-eight and made between Admiral The Hon. Sir Reginald Aylmer Ranfurly Plunkett-Ernele-Drax of the one part and the Corporation of the other part and being the lands coloured green on the said plan Together with the easements and appurtenances thereunto belonging except and reserved as therein more particularly mentioned but subject to the said Lease and all existing easements affecting the said property

Thirdly The lands with all buildings erected thereon shewn edged with red on the plan annexed to a Land Registry Transfer dated Twenty-fifth November One thousand nine hundred and thirty-eight formerly comprised in Registered Title P.43397 and also part of the land comprised in Title No. P.8821 and being the lands coloured blue on the said plan subject however as to the said lands comprised in Title No. P.43397 to the rights of way referred to in the Charges Register over the road tinted brown on the filed plan or any diversion thereof the said lands now being comprised in H.M. Land Certificate under Title No. SY.34234.

THE SECOND SCHEDULE before referred to

“(i) The County Council shall have power to enforce the covenant
“on the part of the Corporation contained in Clause 3 of the Scheduled
“Deed against all persons deriving title under the Corporation as
“fully and effectively and in the like manner and to the like extent
“as if the County Council were possessed of adjacent land capable
“of being benefited by such covenant and as if such covenant had been
“expressed to be entered into for the benefit of such adjacent land.”

“(ii) Section 84 (Power to discharge or modify restrictive covenants
“affecting land) of the Law of Property Act 1925 shall not apply
“to the restrictions imposed by Clause 3 of the Scheduled Deed.”

THE CORPORATE SEAL of the Mayor
Aldermen and Burgesses of the Borough
of Wimbledon was hereunto affixed by
order of the Council in the presence of

(Signed) H. A. CROWE

Mayor.

(Signed) HERBERT EMERSON-SMITH

Town Clerk.

THE COMMON SEAL of the County Council
of the Administrative County of Surrey
was hereunto affixed in the presence of

(Signed) PHILIP HENRIQUES

Chairman of the Council.

(Signed) GEORGE F. ROGERS

Deputy Clerk of the Council.

THIS DEED is made the twenty-fifth day of March One thousand nine hundred and fifty-seven BETWEEN THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WIMBLEDON in the County of Surrey acting by the Council (hereinafter called "the Corporation") of the one part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called "the County Council") of the other part

1ST SCH.
—cont.

WHEREAS—

(1) This Deed is supplemental to a Deed of Covenant (hereinafter called "the Principal Deed") dated the Twenty-fifth day of May One thousand nine hundred and thirty-nine and made between the same parties as the parties hereto

(2) By a transfer dated the Thirtieth day of April One thousand nine hundred and fifty-six the Corporation transferred certain land (hereinafter referred to as "the Warren Farm Land") being part of the land registered at H.M. Land Registry under title No. SY 34234 to the Rt. Hon. Leslie Baron Hore-Belisha of Devonport

(3) The Warren Farm Land forms part of the land coloured blue on the plan annexed to the Principal Deed and is more particularly delineated on the plan annexed hereto and thereon coloured blue

(4) The County Council joined in the transfer to the Rt. Hon. Leslie Baron Hore-Belisha of Devonport for the purpose of releasing the Warren Farm Land from the provisions of the Principal Deed

(5) By a further transfer also dated the Thirtieth day of April One thousand nine hundred and fifty-six the Rt. Hon. Leslie Baron Hore-Belisha of Devonport transferred to the Corporation certain land (hereinafter referred to as "Fishpond Wood")

(6) The Corporation have agreed that the provisions of the Principal Deed shall apply to the Fishpond Wood Land

NOW THIS DEED WITNESSETH as follows:—

In consideration of the hereinbefore recited release by the County Council of the Warren Farm Land from the provisions of the Principal Deed the Corporation (to the intent and so as to bind Fishpond Wood into whosoever hands the same may come) hereby covenant with the County Council that All that piece or parcel of land situate in the Borough of Wimbledon in the County of Surrey and known as Fishpond Wood all which said land is registered at H.M. Land Registry with Title Absolute under title No. SY 32758 and is more particularly delineated on the plan annexed hereto and thereon coloured pink shall as from the said Thirtieth day of April One thousand nine hundred and fifty-six be subject to the Covenants and Stipulations contained in the Principal Deed which Covenants and Stipulations will be performed and observed by the Corporation in relation to Fishpond Wood as if the same had been repeated herein in full with such modifications only as are necessary to make them applicable to this Deed.

1ST SCH.
—cont.

In witness whereof the Common Seal of the Corporation was hereunto affixed the day and year first before written.

THE COMMON SEAL of the Mayor Aldermen
and Burgesses of the Borough of
Wimbledon was hereunto affixed in the
presence of

(Signed) D. LESLIE REID
Mayor.

(Signed) FRANCIS J. O'DOWD
Town Clerk.

THIS DEED is made the first day of November One thousand nine hundred and fifty-four BETWEEN THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF WIMBLEDON in the County of Surrey (hereinafter called "the Corporation") of the one part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called "the County Council") of the other part

WHEREAS—

(1) Under and by virtue of the several Instruments mentioned in the First Schedule hereto the Corporation have from time to time acquired and are now the owners in fee simple free from incumbrances of the land more particularly described in the said First Schedule and distinguished by the colour green on the plan No. 1659/138 attached hereto (hereinafter referred to as "the said land") subject as therein mentioned but subject also as to the land hatched in red on the said plan to a Lease dated the Sixteenth day of June One thousand nine hundred and forty-nine granted by the Corporation to the Trustees of the Royal Wimbledon Golf Club for a term of forty-nine and a half years from the First day of July One thousand nine hundred and forty-nine

(2) The total cost to the Corporation in respect of the acquisition of the said land has been the sum of Twenty-seven thousand seven hundred and seventy-five pounds

(3) The County Council to the intent that the said land shall for all time be preserved from building development and held and maintained in perpetuity as an open space have contributed the sum of Three thousand four hundred and seventy-two pounds (£3,472) towards the cost of the acquisition of the said land in consideration of the Corporation making the declaration and entering into the covenants hereinafter contained

NOW THIS DEED WITNESSETH as follows:—

1. This Deed is made in consideration of the aforesaid contribution and by virtue of the powers conferred by the Public Health Acts 1875-1936 the Open Spaces Act 1906 the Physical Training and Recreation Act 1937 section 37 of the Wimbledon Corporation Act 1933 and all other powers statutory or otherwise applicable in this behalf.

2. The Corporation in pursuance of the aforesaid powers statutory or otherwise applicable in this behalf and of their desire to preserve the said land in manner hereinafter appearing hereby covenant and declare that the said land shall (subject to the provisions of this Deed) be held and maintained by the Corporation in perpetuity as an open space as hereinafter more particularly mentioned.

3. The Corporation to the intent and so as to bind the said land into whosoever hands the same may come hereby covenant with the County Council in manner following that is to say:—

(1) That the said land or any part thereof shall not at any time hereafter be used without the written consent of the County Council previously had and obtained (which consent shall not unreasonably be withheld) for any purpose other than—

(a) a public open space within the meaning of the Open Spaces Act 1906; or

(b) public walks and pleasure grounds within the meaning of the Public Health Acts 1875-1936; or

(c) outdoor games or recreations authorised by section 4 (1) of the Physical Training and Recreation Act 1937; or

(d) any purpose similar to and extending sub-clauses (a) (b) and (c) above which may hereafter be authorised by statute

Provided always that the Corporation shall not after any part of the said land shall have been used for any of the public purposes or the purposes authorised by this clause use or permit or suffer that part thereof to be used for any purpose other than some one or more of the public purposes aforesaid without the written consent of the County Council first had and obtained as aforesaid

(2) That no building shall at any time be erected on any part of the said land other than a building which is ancillary to the purpose or purposes (so authorised as aforesaid) for which the said land or the appropriate part or parts thereof is or are for the time being in use unless the consent thereto in writing of the County Council shall have been first had and obtained as aforesaid

(3) That in permitting or allocating facilities for the use of the said land or any part thereof the Corporation shall not at any time make any discrimination between the inhabitants of Wimbledon and the inhabitants of Surrey and any other persons. Provided however that this condition shall not preclude the Corporation from exercising their statutory powers to close temporarily the whole or any part of the said land

(4) The Corporation shall not without the written consent of the County Council first had and obtained as aforesaid grant or in any other manner accede to any application which may hereafter be made by any lessee or tenant of the said land or of any part thereof for the term of his Lease or Tenancy

1ST SCH.
—cont.

to be waived or modified in such a manner as will permit the lands comprised in the Lease or Tenancy or any part thereof to be used (whether by such Lessee or Tenant or by any person authorised by him) in manner inconsistent with the provisions of clause 3 (1) hereof.

4. The Corporation hereby further covenant with the County Council that if at any time hereafter the Corporation shall receive or become entitled to receive any sum from the Minister of Housing and Local Government under the provisions of the Town and Country Planning Act 1947 (or any statutory modification or re-enactment thereof) which shall not have been taken into account by the County Council when resolving to contribute towards the acquisition of the said land as aforesaid or if the Corporation shall at any time hereafter receive any sum by way of grant from the Ministry of Education under the provisions of the Physical Training and Recreation Act 1937 towards the expenses of the Corporation in making the said acquisition or any part or parts thereof the Corporation shall within one month of the receipt by them of any such sum pay to the County Council such a proportion of the sum so received as the said sum of Three thousand four hundred and seventy-two pounds (£3,472) now contributed by the County Council bears to the said cost of the said acquisition of Twenty-seven thousand seven hundred and seventy-five pounds.

5. With respect to the said land the Corporation consent to particulars of this Deed being registered as a Land Charge pursuant to the Land Charges Act 1925.

6. It is hereby expressly covenanted agreed and declared by and between the Corporation and the County Council that this Deed (which for the purpose of this clause and of the Bill hereinafter referred to is and shall be called "the Scheduled Deed") shall be scheduled to the next Bill in Parliament promoted by either the Corporation or the County Council (whichever shall be the earlier) and that there shall be included in such Bill a clause in the form set out in the Second Schedule hereto or in such other form to the like effect as may be agreed between the Corporation and the County Council and further that the Corporation and the County Council shall use their best endeavours respectively to procure the passing of such clause into law as part of the Bill.

In witness whereof the respective Seals of the Corporation of Wimbledon and of the County Council of the Administrative County of Surrey were hereunto affixed the day and year first before written.

THE FIRST SCHEDULE before referred to

The land (containing in area Thirty-four decimal point nine nought nine acres or thereabouts) and buildings thereon being part of the Cannizaro and West Side House Estates Wimbledon and coloured green on Plan No. 1659/138 annexed hereto which said land was acquired by the Corporation.

As to part thereof—By a Conveyance dated the Fifteenth day of December One thousand nine hundred and forty-eight and made

between Admiral The Honourable Sir Reginald Aylmer Ranfurly Plunkett-Ernle-Erle Drax K.C.B., D.S.O., D.L., of the one part and the Corporation of the other part.

1st Sch.
—cont.

As to the remainder thereof—By a Conveyance dated the Twenty-second day of June One thousand nine hundred and forty-eight and made between The Right Honourable Geoffrey William Richard Hugh Earl of Munster of the one part and the Corporation of the other part.

THE SECOND SCHEDULE before referred to

“(i) The County Council shall have power to enforce the covenant on the part of the Corporation contained in Clause 3 of the Scheduled Deed against all persons deriving title under the Corporation as fully and effectively and in the like manner and to the like extent as if the County Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.”

“(ii) Section 84 (Power to discharge or modify restrictive covenants affecting land) of the Law of Property Act 1925 shall not apply to the restrictions imposed by Clause 3 of the Scheduled Deed.”

THE COMMON SEAL of the Borough of Wimbledon was hereunto affixed by order of the Council in the presence of

(Signed) ALICK WITHALL
Mayor.

(Signed) FRANCIS J. O'DOWD
Town Clerk.

THE COMMON SEAL of the County Council of the Administrative County of Surrey was hereunto affixed in the presence of

(Signed) J. H. WENHAM
Chairman of the Council.

(Signed) W. W. RUFF
Clerk of the Council.

THIS DEED is made the twentieth day of November One thousand nine hundred and forty-five BETWEEN THE URBAN DISTRICT COUNCIL OF MERTON AND MORDEN in the County of Surrey (hereinafter called “the District Council”) of the one part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called “the County Council”) of the other part

WHEREAS under and by virtue of a Deed of Conveyance dated the twentieth day of November One thousand nine hundred and forty-five and made between Herbert Seymour Hatfeild Aubrey Cecil Hatfeild and Reginald Thurston Rivington of the one part and the District Council of the other part the District Council have acquired and are now the owners in fee simple free from incumbrances of

1ST SCH.
—cont.

(inter alia) the land more particularly described in the First Schedule hereto and distinguished by the colour green (but excluding the strip coloured red) on the plan attached hereto (hereinafter referred to as "the said land") subject to the Leases more particularly referred to in the Second Schedule hereto

AND WHEREAS the cost to the District Council in respect of the acquisition of the said land has been the sum of Fifty-six thousand six hundred and ninety-nine pounds (£56,699)

AND WHEREAS the County Council to the intent that the said land shall for all time be preserved from building development and held and maintained in perpetuity as an open space have contributed a sum of Fifteen thousand six hundred and sixty pounds (£15,660) towards the cost of the acquisition of the said land in consideration of the District Council making the declaration and entering into the covenants hereinafter contained

NOW THIS DEED WITNESSETH as follows:—

1. This Deed is made in consideration of the aforesaid contribution and by virtue of the powers conferred by the Public Health Acts 1875-1936 the Open Spaces Act 1906 the Physical Training and Recreation Act 1937 and all other powers statutory or otherwise applicable in this behalf.

2. The District Council in pursuance of the aforesaid powers statutory or otherwise applicable in this behalf and of their desire to preserve the said land in manner hereinafter appearing hereby covenant and declare that the said land shall (subject to the provisions of this Deed and to the terms and conditions of the said Leases) be held and maintained by the District Council in perpetuity as an open space as hereinafter more particularly mentioned.

3. The District Council to the intent and so as to bind the said land into whosoever hands the same may come hereby covenant with the County Council in manner following that is to say—

(1) That the said land or any part thereof shall not at any time hereafter be used without the written consent of the County Council previously had and obtained (which consent shall not unreasonably be withheld) for any purpose other than—

(a) a public open space within the meaning of the Open Spaces Act 1906; or

(b) public walks and pleasure grounds within the meaning of the Public Health Acts 1875-1936; or

(c) outdoor games or recreation authorised by section 4 (1) of the Physical Training and Recreation Act 1937; or

(d) any purpose similar to and extending sub-clauses (a) (b) and (c) above which may hereafter be authorised by statute

(2) That no building shall at any time be erected on any part of the said land other than a building which is ancillary to the purpose or purposes (so authorised as aforesaid) for which

the said land or the appropriate part or parts thereof is or are for the time being in use unless the consents thereto in writing of the County Council shall have been first had and obtained as aforesaid

- (3) The District Council shall not without the written consent of the County Council first had and obtained as aforesaid grant or in any other manner accede to any application which may hereafter be made by any lessee or tenant of the said land or of any part thereof for the term of his lease or tenancy to be waived or modified in such a manner as will permit the lands comprised in the Lease or tenancy or any part thereof to be used (whether by such lessee or tenant or by any person authorised by him) in manner inconsistent with the provisions of clause 3 (1) hereof.

4. The District Council hereby further covenant with the County Council that if at any time hereafter the District Council shall receive or become entitled to receive any sum for betterment under section 21 of the Town and Country Planning Act 1932 from the owner or owners for the time being of lands adjoining or neighbouring to the said land or any part thereof for increase in value of such adjoining or neighbouring lands by reason of the covenants provisions and stipulations hereinbefore contained or if the District Council shall at any time hereafter receive any sum by way of grant from the Ministry of Education under the provisions of the Physical Training and Recreation Act 1937 towards the expenses of the District Council in making the said acquisition or any part or parts thereof the District Council shall (subject in the case of betterment to the approval of the Minister of Health under section 32 of the Town and Country Planning Act 1932) within one month of the receipt by them of any said sum pay to the County Council such a proportion of the sum so received as the said sum of Fifteen thousand six hundred and sixty pounds (£15,660) now contributed by the County Council bears to the said cost of the said acquisition of Fifty-six thousand six hundred and sixty-nine pounds.

5. The District Council hereby consent to particulars of this Deed being registered as a Land Charge pursuant to the Land Charges Act 1925.

6. It is hereby agreed and declared that no other liability shall fall upon the County Council in respect of any future highway or other proposal affecting the said land.

7. It is hereby expressly covenanted agreed and declared by and between the District Council and the County Council that this Deed (which for the purpose of this clause and of the Bill hereinafter referred to is and shall be called "the Scheduled Deed") shall be scheduled to the next Bill in Parliament promoted by either the District Council or the County Council (whichever shall be the earlier) and that there shall be included in such Bill a clause in the form set out in the Third Schedule hereto or in such other form to the like effect as may be agreed between the District Council and the County Council and further that the District Council and the County Council shall use their best endeavours respectively to secure the passing of such clause into law as part of the Bill.

1st SCH.
—cont.

In witness whereof the District Council and the County Council have caused their respective Common Seals to be hereunto affixed the day and year first before written.

THE FIRST SCHEDULE before referred to

All those pieces or parcels of land containing an area of 90.27 acres or thereabouts forming part of Morden Park situate at Morden in the County of Surrey.

THE SECOND SCHEDULE before referred to

Date of Lease	Lessees	Description	Area	Term	Rent
28th December 1933 as varied by a Deed of Variation dated 6th August 1940 and surrender of part dated 15th March 1944	Merton Park (Wimbledon) Golf Club Limited	" Morden Park " Morden and adjoining land	150.774 acres (being only partly on the said land)	10 years from 25th December 1933	£775 per annum (being apportioned as between the District Council and the adjoining owners so that £519 per annum is payable to the District Council)
6th June 1939	Alexander Hay	Peacock Farm Morden		3½ years from 25th March 1939	£85 per annum
17th March 1944	The New Merton Board Mills Limited	Part of " Morden Park " Morden	11.137 acres	5 years from 29th September 1943	£125 per annum

THE THIRD SCHEDULE before referred to

" (i) The County Council shall have power to enforce the covenant on the part of the District Council contained in Clause 3 of the Scheduled Deed against all persons deriving title under the District Council as fully and effectively and in the like manner and to the like extent as if the County Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land."

" (ii) Section 84 (Power to discharge or modify restrictive covenants affecting land) of the Law of Property Act 1925 shall not apply to the restrictions imposed by Clause 3 of the Scheduled Deed."

THE COMMON SEAL of the Urban District Council of Merton and Morden was hereunto affixed in the presence of

(Signed) S. W. BILLINGHAM

Chairman of the Council.

(Signed) HARRY MAY

Clerk of the Council.

THE COMMON SEAL of the County Council of the Administrative County of Surrey was hereunto affixed in the presence of

(Signed) JOHN A. TULK

Chairman of the Council.

(Signed) GEORGE F. ROGERS

Deputy Clerk of the Council.

SECOND SCHEDULE

Section 65

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices &c.
284	Authentication of documents.
285	Service of notices &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS III AND VIII (EXCEPT SECTION 52 (RETURN OF LIBRARY BOOKS ETC.)) OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint &c.
329	Saving for certain provisions of the Land Charges Act 1925.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847 ...	10 & 11 Vict. c. 34.
Metropolitan Commons Act 1866 ...	29 & 30 Vict. c. 122.
Local Loans Act 1875 ...	38 & 39 Vict. c. 83.
Telegraph Act 1878 ...	41 & 42 Vict. c. 76.
Electric Lighting Act 1882 ...	45 & 46 Vict. c. 56.
Public Health Acts Amendment Act 1890	53 & 54 Vict. c. 59.
Private Street Works Act 1892 ...	55 & 56 Vict. c. 57
Open Spaces Act 1906 ...	6 Edw. 7 c. 25.
Public Health Acts Amendment Act 1907	7 Edw. 7 c. 53.
Cinematograph Act 1909 ...	9 Edw. 7 c. 30.
Ministry of Transport Act 1919 ...	9 & 10 Geo. 5 c. 50.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Pensions (Increase) Act 1920 ...	10 & 11 Geo. 5 c. 36.
Pensions (Increase) Act 1924 ...	14 & 15 Geo. 5 c. 32.
Trustee Act 1925 ...	15 Geo. 5 c. 19.
Law of Property Act 1925 ...	15 Geo. 5 c. 20.
Land Charges Act 1925 ...	15 & 16 Geo. 5 c. 22.
Roads Improvement Act 1925 ...	15 & 16 Geo. 5 c. 68.
Public Health Act 1925 ...	15 & 16 Geo. 5 c. 71.
Rating and Valuation Act 1925 ...	15 & 16 Geo. 5 c. 90.
Surrey County Council Act 1925 ...	15 & 16 Geo. 5 c. cxv.
Law of Property (Amendment) Act 1926	16 & 17 Geo. 5 c. 11.
Road Transport Lighting Act 1927 ...	17 & 18 Geo. 5 c. 19.
Local Government Act 1929 ...	19 & 20 Geo. 5 c. 17.
Surrey County Council Act 1931 ...	21 & 22 Geo. 5 c. ci.
Town and Country Planning Act 1932 ...	22 & 23 Geo. 5 c. 48.
Children and Young Persons Act 1933 ...	23 Geo. 5 c. 12.
Local Government Act 1933 ...	23 & 24 Geo. 5 c. 51.
Wimbledon Corporation Act 1933 ...	23 & 24 Geo. 5 c. lxxvii.
Public Health Act 1936 ...	26 Geo. 5 & 1 Edw. 8 c. 49.
Surrey County Council Act 1936 ...	26 Geo. 5 & 1 Edw. 8 c. cxxx.
Trunk Roads Act 1936 ...	1 Edw. 8 & 1 Geo. 6 c. 5.
Physical Training and Recreation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 46.
Factories Act 1937 ...	1 Edw. 8 & 1 Geo. 6 c. 67.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
London Passenger Transport Act 1938	2 & 3 Geo. 6 c. lxxxix.
Land Drainage (Surrey County Council (Hogsmill River Improvement)) Provisional Order Confirmation Act 1942	5 & 6 Geo. 6 c. iii.
Pensions (Increase) Act 1944 ...	7 & 8 Geo. 6 c. 21.
Trunk Roads Act 1946 ...	9 & 10 Geo. 6 c. 30.
Acquisition of Land (Authorisation Procedure) Act 1946	9 & 10 Geo. 6 c. 49.
Education Act 1946 ...	9 & 10 Geo. 6 c. 50.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
National Health Service Act 1946 ...	9 & 10 Geo. 6 c. 81.
Pensions (Increase) Act 1947 ...	10 & 11 Geo. 6 c. 7.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Local Government Act 1948 ...	11 & 12 Geo. 6 c. 26.
Children Act 1948 ...	11 & 12 Geo. 6 c. 43.
Lands Tribunal Act 1949 ...	12 & 13 Geo. 6 c. 42.

Short title	Session and chapter
Land Drainage (Surrey County Council (Hogsmill River Improvement) (Amendment)) Provisional Order Confirmation Act 1950	14 Geo. 6 c. x.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Pensions (Increase) Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 45.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Cinematograph Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 68.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.
Pensions (Increase) Act 1956	4 & 5 Eliz. 2 c. 39.

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